CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E93698CCD
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN PART

From: Shelby, Rex <rex.shelby@enron.com>
Sent: Wed, 31 Oct 2001 14:04:27 -0800 (PST)
To: Greenberg, Mark <mark.greenberg@enron.com>, Palmer, Mark S. (ENW) <.palmer@enron.com>
Cc: Koehler, Anne C. <c..koehler@enron.com>, Jones, Tana <tana.jones@enron.com>, Wax, Brandon <brandon.wax@enron.com>
Subject: RE: SunGard

Mark --

This looks fine to me. I believe that Henry Bonner of SunGard is travelling tonight and will be in Houston tomorrow. He left a message saying that he will call with the hotel fax number when he gets to his destination. I will forward that information as soon as I receive it so that we can get the NDA and signed letter to him. Henry's cell phone number is 917 373 5844 (Cell). Thanks.

-- Rex

-----Original Message-----
From: Greenberg, Mark
Sent: Wednesday, October 31, 2001 3:58 PM
To: Shelby, Rex; Palmer, Mark S. (ENW)
Cc: Koehler, Anne C.; Jones, Tana
Subject: SunGard
Importance: High

Rex/Mark -

As we discussed, I am not confident that the Automated Securities Clearance NDA sufficiently covers us in this new matter. I have called Henry Bonner at SunGard to verify the legal structure to see if we can or cannot use it; however, he has yet to return my call.

I have prepared the attached based upon a belief that we should have in place an NDA specifically with SunGard Trading & Risk Systems. Because we also want to move this matter forward, I have attached to the agreement a "Schedule A" in which I have outlined the work that SunGard will be performing for us - at least at the onset. If we go beyond the first five days of this work, we should definitely have a formal consulting agreement signed to ensure we have a clear path forward on the work to be done and deliverables to be provided.

In the meantime, please take a look at the attached and let me know if this

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works.

Thanks.

mark

<< File: nda - sungardtrading&risksystems(10-31-01).doc >>

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